

****December 13, 2021****

****Fine for Violation of GDPR****

The National Supervisory Authority completed in November of the current year an investigation into the operator SC Nobiotic Pharma SRL and found a violation of the provisions of Article 58 paragraph (1) of the General Data Protection Regulation. As such, SC Nobiotic Pharma SRL was sanctioned with a fine in the amount of 9,890 lei, equivalent to 2,000 EURO, for violating Article 58 paragraph (1) of the General Data Protection Regulation, concerning the operator's obligation to provide the necessary information to the National Supervisory Authority.

In this context, we specify that Article 58 paragraph (1) letters a) and e) of the General Data Protection Regulation provides the following:

“(1) Each supervisory authority has all of the following investigative powers:

a) to issue orders to the operator and the operator's processor and, where applicable, the representative of the operator or the processor to provide any information requested by the supervisory authority in order to perform its tasks;

e) to obtain from the operator and the processor access to all personal data and to all information necessary for the performance of its tasks.”

The investigation was conducted following complaints from the petitioner claiming that the operator sent unsolicited commercial SMS messages without having their consent. Since the operator did not respond to the request for information addressed by the National Supervisory Authority in the exercise of its powers, it was sanctioned with a fine.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****